

1.0 General Information.

1.1 Notification.

This is a Commercial Solutions Opening (CSO) issued under the authority of DFARS 212.70. The Defense Commissary Agency (DeCA) is focused on modernizing business operations by actively seeking innovative commercial technologies, products and services that will enhance our ability to deliver the military non-pay benefit at a significant patron savings.

Authorized under DFARS Subpart 212-70, this CSO enables DeCA to competitively procure solutions through a streamlined acquisition process, allowing for rapid decisions. This approach underscores our mission to expedite the award and delivery of critical technologies, products, and services, ensuring that DeCA can leverage advancements in the grocery resale industry swiftly and efficiently. By prioritizing speed in our contracting efforts, we aim to support the timely integration of cutting-edge technologies, products, and services that enhance our ability to: improve the commissary benefit; decrease costs without diminishing the benefit; improve processes that have a high risk of potential fraud, waste, or abuse; and reduce waste and decrease variation in processes.

Contracts awarded under this authority will be structured as fixed-price contracts. Through this initiative, DeCA reaffirms its commitment to fostering innovation and enhancing business operations, ultimately delivering a vital benefit of the military compensation package that improves quality of life and readiness by providing grocery items at significant savings.

1.2 CSO Procedure.

DeCA seeks to award FAR contracts under FAR Part 12, Commercial Procedures that are directly relevant to achieving DeCA's 5-Year Strategic Plan. This CSO may result in awards to proposals through 2028.

The Government reserves the right to extend this CSO beyond the open until date by amendment if the authority is extended.

The Government reserves the right to amend this CSO solicitation as necessary amendments for emerging requirements and changes in authority occur. Amendments to this CSO will be posted via SAM.gov.

The Government may add Areas of Interest (AolS) against this CSO at any time throughout its duration. Interested companies are encouraged to frequently check www.SAM.gov for new Aol postings.

The CSO outlines the procedures that are available for utilization by the Government for AolS to ensure a competitive process is followed.

Requests for a Commercial Solution Proposal (CSP) under this CSO are subject to the availability of government funds. The government will not pay companies for costs associated with developing submissions in regard to this CSO or resulting Aol.

This CSO may include awards for, but are not limited to, commercially available technologies immediately available, commercially available technologies, products or services fueled by

commercial or strategic investment, concept demonstrations, pilots, and agile development activities that can incrementally improve commercial grocery resale technologies, products or services; existing government-owned capabilities; or concept.

1.3 Solicitation Process.

The CSO solicitation process may include a multi-phased solicitation and evaluation approach that is dependent upon specific Aols. The Aols are focused topic(s) or categories specified in Section 5. The following phases may be used:

Phase 1 – Submission of written solution brief;

Phase 2 – Presentation (if applicable); and

Phase 3 – Request for Commercial Solution Proposal (CSP).

The Government reserves the right to forgo Phase 1 and Phase 2 based on the individual merits. The Government also reserves the right to move expeditiously through the phases based on the merit of submissions if urgent requirements arise.

Entities may elect to forgo Phase 1 and Phase 2 and submit a written proposal, however, due to Government budget uncertainties, no specific dollars have been reserved for awards under this CSO. DeCA will provide no funding for direct reimbursement of white paper or proposal development costs.

During any step of the CSO, the Government may send written questions or comments for the offerors to address via email, or other suitable communication methods as determined by the Government.

The Government may engage in discussions with companies during any phase of the process including development of the formal proposal phase.

2.0 Definitions.

“Area of Interest” (Aol) means an announcement posted on the GPE website, which may result in the award of various types of contracts that will be dependent on the specific Aol requirement.

“Commercial Solutions Opening” (CSO) is a competitive procedure contracting officers may use to acquire innovative commercial items, technologies, or services.

Commercial Solution Proposal (CSP): is a commercial proposal that is submitted in response to an Aol that is governed by a CSO. CSPs may be requested as a result of solution briefs and/or presentations/presentations.

“Innovative” means —

- a. any technology, process, or method, including research and development, that is new as of the date of submission of a proposal; or
- b. any application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date.

3.0 Guidelines for Solution Briefs, Presentations (if applicable), and Commercial Solution Proposals.

3.1 General Guidelines.

3.1.1 Companies may submit multiple solution briefs in response to any single Aol if each submission represents a separate and distinct concept. Individual solution briefs may only address one concept based on the stated Aol.

3.1.2 Questions regarding the objectives or preparation of the solution brief should be addressed to the Point Of Contacts (POC) listed in the respective Aol.

3.1.3 Submissions must be submitted electronically in accordance with the Aol instructions.

3.1.4 Entities submitting solution briefs that are not chosen for the presentation phase or the CSP phase will be notified in writing as soon as practicable. Further verbal feedback may be provided, upon request, at the Contracting Officer's discretion.

3.2 Solution Briefs.

3.2.1 Solution Brief Content.

Unless otherwise stated on the subject Aol, solution briefs shall not exceed 10 single-sided written pages using no smaller than a 12-point font or, alternatively, solution briefs may take the form of briefing slides which shall not exceed 20 slides. The cover page or title slide are not included in the page or slide count.

Solution briefs must include the following:

- Cover page or title slide identifying the Aol, Company Name, Company Address, Date, and Point of Contact Information (i.e., Name, Title, E-Mail Address, and Phone Number).
- Executive Summary providing a high-level narrative of the technology, product or service proposed.
- Technical Concept
 - Describing how the proposed Aol solution or potential new capabilities represent: an application of innovative commercial technologies, products, or services; or adaptations or modifications of existing commercial technologies, products or services.
 - Describing the unique aspects of the technology, product, or service and the proposed work as it relates to the Aol.
 - Identifying whether the effort includes the pilot or demonstration of existing commercial technology (identified as commercially ready and viable technology), or the development of technology for application in commercial grocery resale operations. If development or adaptation is proposed, identify a suggested path to mature the technology.
 - Identifying aspects of your proposal, to include data and software, which may be considered proprietary.
- Price for the proposed solution to include desired payment terms shall be stated. The firm fixed price for services shall include the applicable monetary wage-fringe benefits for the employee class expected to be employed under the contract in compliance with Service Contract Labor Standards, as applicable.

3.2.2 Solution Brief Basis of Evaluation:

Solution brief evaluation criteria are listed in order of importance. Individual solution briefs will be evaluated against the evaluation criteria described below:

- Responsiveness of the solution brief in addressing the Aol with a commercially available product or process readily available to meet the immediate needs;
- Technical merit of the proposed solution, including the extent to which the proposed solution is unique, or innovative to government application; and
- Affordability of the proposed solution.

Solution briefs will be evaluated based on the evaluation criteria listed above, not against other solution briefs submitted in response to the same Aol.

Additional technical evaluation criteria specific to a particular project may be used. In these instances, the additional criteria will be posted within or as an attachment to the Aol on the Governmentwide Point of Entry website (i.e., sam.gov).

Based on the results of the Phase I evaluation, the government may elect to invite “all, some, or none” of the proposed solutions into Phase 2 Presentations or directly into Phase 3 by requesting a CSP.

3.2.3 Solution Brief Submission.

Solution briefs should be emailed to the point(s) of contact listed within the applicable Area of Interest.

3.3 Presentations (if applicable).

Presentations are at the invitation of the Government. The invitation will be issued in writing and may include requests for additional information or detail from the company’s solution brief. In addition to the Presentation, the Government may request an additional written submission to supplement or clarify the information provided in the Phase 1 solution brief. Depending on the specific requirement, the Government may request an in-person, virtual, or paper demonstration. In the event that the Government requires a demonstration, additional information will be provided in the specific Aol highlighting those procedures.

3.3.1 Presentation Content.

The Presentation should demonstrate and provide further details on the technical and business viability of the proposed Aol solution. The Presentation should

- Describe or demonstrate how the proposed solution represents an innovative application of commercial technology to the Aol.
- Provide a notional schedule.
- Identify any Intellectual Property (IP) involved in the effort and associated restrictions on the government’s use of that IP.
- Elaborate on the proposed price.
- Address any additional information or detail from the company’s Phase 1 solution brief, as specified in the government’s invitation to Phase 2.

3.3.2 Presentation Basis of Evaluation.

Individual presentations will be evaluated against the evaluation criteria below and not against any other presentations held under the same Aol. Presentation submissions will be valid for 90 days after presentation evaluation.

Presentation evaluation criteria are listed in descending order of importance below. Presentations will be evaluated on the following factors, as provided in the Aol:

- Level of relevancy of the solution in addressing the Aol with a commercially available product or process;
- Technical merit of the proposed solution to adequately address the Aol need(s) and demonstrated feasibility for the government to pursue the proposed solution;
- Level of uniqueness, or innovative approach to solve the government's need;
- Level of technical risk or maturity;
- Level of risk in the proposed milestone schedule and its ability to meet the Aol need within a relevant time period; and
- Level of risk in the company's viability and business solution.

After completing the evaluation of presentation submissions, the Government will notify the company of one of the following:

- Request a CSP for evaluation in Phase 3;
- The proposed solution is not of continued interest to the Government and will not be considered for a CSP Phase 3; or
- The proposed solution is of continued interest to the Government but is not currently eligible for an invitation to Phase 3 CSP submission due to the current lack of Government resources or funding.

NOTE: If Government funding or resources are not assigned for a Phase 3 CSP 90 days after completion of the evaluation, the Government will send written notification of non-eligibility and officially close the Aol selection process.

3.4 Commercial Solution Proposals.

Commercial Solution Proposals are submitted: at the invitation of the Government; as a result of the Government electing to forego phase(s) 1, 2, or both as stated in the Aol; or a result of an entity electing to forego phases 1 and 2. Offerors must ensure that the CSP is valid for at least 180 days from the submission date. The CSP must be prepared in two separate Volumes as follows: Volume I Price; and Volume II Technical.

3.4.1 Proposal Content

3.4.1.1 Volume I Business and Price Proposal.

3.4.1.1.1 Business Section.

State terms and conditions. Companies should note that there are certain terms and conditions the Government may be unable to accept. However, projects awarded through the CSO may provide flexibility to adopt customary industry standards where it is otherwise legal and meets the Government's general public responsibility. Companies should familiarize themselves with FAR 12, DFARS 12, and DFARS PGI 12.

3.4.1.1.2 Price Section.

The price volume must contain sufficient information to allow the government to perform a basic analysis of the proposed price. The government reserves the right to request any other price data or supporting cost information the government deems necessary to determine whether the total overall price is fair and reasonable. This can include but is not limited to commercial price catalog(s), previous commercial sales receipts, and other proprietary information to help the government determine reasonableness and future budgetary cost estimates.

The cost of preparing proposals in response to this CSO is NOT considered a direct charge to any resulting Aol award or any other contract.

The government reserves the right to further define the required price proposal content based upon the specific Aol requirements.

3.4.1.2 Volume II Technical.

The technical volume shall include a detailed work plan indicating how each aspect of the objectives is to be accomplished. The technical volume should be in as much detail as the offeror considers necessary to fully explain its proposed technical approach or method, including all assumptions utilized to develop its proposed solution and associated costs. The technical volume should reflect a clear understanding of the nature of the work being undertaken. The technical volume must include information on how the project will be organized, staffed, and managed. Information should be provided that demonstrates the company's understanding and management of important events or tasks. The technical volume must include a list of suggested deliverables and deliverable dates.

NOTE: The government reserves the right to further define the required technical proposal content based upon the specific Aol requirements.

3.4.2 Proposal Evaluation.

3.4.2.1 Basis of Evaluation.

Proposals will be reviewed as received by a government subject matter expert(s). The CSO evaluation criteria is listed in descending order of importance below. The Government subject matter expert(s) will first review the proposal for adequacy and eligibility to determine the extent to which the following requirements are met:

- The merit and risk elements of the proposed technical approach are acceptable and address the priorities outlined in the Aols;
- The proposal performance schedule is realistic and adequate; and,
- The proposed price is fair and reasonable.

3.4.2.2 Evaluation Rating.

3.4.2.2.1 Volume I Price will be evaluated as follows:

Fair and Reasonable: The price proposal has been evaluated and deemed fair and reasonable. A Fair and Reasonable proposal may proceed to the award process. A fair and reasonable price determination does not guarantee contract award. The following will be taken into consideration:

program priorities, outcome of negotiations, and availability of funds.

Not Fair and Reasonable: The price proposal has been evaluated and deemed not fair and reasonable. Proposal submissions given this designation may not proceed to the award process without negotiations that result in a fair and reasonable determination.

3.4.2.2.2 Volume II Technical will be evaluated and assigned one of the following ratings:

Acceptable: The proposal has been evaluated and deemed appropriate for additional consideration and discussion. An acceptable proposal is generally considered well-conceived, technically sound, and important to program goals and objectives. An acceptable proposal may proceed into negotiations or directly to the award process. **NOTE:** An acceptable rating does not guarantee contract award. The following will be taken into consideration: program priorities, outcome of negotiations, and availability of funds.

Unacceptable: The proposal has been evaluated and deemed inappropriate for additional consideration. An unacceptable proposal is generally not considered well-conceived, technically sound, or does not meet program priorities. An unacceptable proposal will be rejected.

4. Awards.

4.1 General Guidelines.

Upon favorable review and funds availability, the government may choose to make a fixed price award using FAR Part 12 Acquisition of Commercial Items.

The Contracting Officer reserves the right to negotiate directly with the company on the terms and conditions prior to execution of the resulting contract or agreement, including payment terms, and will execute the contract or agreement on behalf of the government.

In order to receive an award –

- A company must have a Unique Entity ID (UEI) and shall be registered in the System for Award Management (SAM) prior to receiving an award. Companies are advised to commence SAM registration upon pursuing an Aol announcement.
- A company must also register in the Procurement Integrated Enterprise Environment (PIEE) Wide Area Work Flow (WAWF) application.
- A company must be determined to be responsible by the Contracting Officer and must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order or law from receiving an award.

Receipt of a request for CSP does not guarantee that a company will receive an award and the government reserves the right, at any point prior to award of a contract or agreement, to cancel the Request for CSP. The government reserves the right to make awards to all, some, or none of the selected solutions.

4.2 Procurement Integrity Act (PIA)

The CSO solicitation process for FAR contracts is covered by the Procurement Integrity Act (PIA). PIA is implemented for FAR contracts through FAR part 3.104. Accordingly, the CSO competitive solicitation process and awards made thereby must adhere to the ethical standards required by the PIA.

5.0 Areas of Interest.

The below Aols will be further defined via attachments identifying specific requirements.

5.1 Grow Sales: Grow sales to build a stronger and more valued benefit and to deliver more savings benefit, amplifying the appropriation 2X.

5.2 Develop Leaders-Build the Bench: Cultivate our leaders and workforce to become more skilled and competitive. Develop leaders to lead and operate a Patron-delighting grocery business inside the Department of Defense.

5.3 Drive Accountability: Hold ourselves, our suppliers, our distributors, and our contractors accountable for quantifiable measures of results and not just adherence to process. Ensure the needed processes for checks and balances deliver fiscal responsibility and a clean audit.

5.4 Lower Costs: Optimize our efficiency and effectiveness by controlling costs as inflation rises, reducing the cost of doing business.

5.5 Modernize Business: Revolutionize our Patron's shopping environment and accessibility (infrastructure), improve our business operations, and enable digital growth to enhance and improve the Patron experience.